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Case Number: 21STCV08495 Hearing Date: August 31, 2026 Dept: 408

1.

Defendant Associated Ready Mixed Concrete, Inc.'s Motion for Summary Judgment, or in the alternative, Summary Adjudication as to Plaintiff Melissa Davis is GRANTED.

2.

Defendant Associated Ready Mixed Concrete, Inc.'s Motion for Summary Judgment, or in the alternative, Summary Adjudication as to Plaintiff Eric Marquez is GRANTED.

I.

BACKGROUND

On March 4, 2021, Plaintiffs Eric Marquez ("Marquez") and Melissa Davis ("Davis", collectively "Plaintiffs") filed a complaint against Defendants Crush Materials Corporation ("Crush"), Associated Ready Mixed Concrete, Inc. ("ARMC"), and Christine Rush ("Rush", collectively "Defendants") alleging causes of action for:

1.

Failure
to Pay Proper Wages;

2.

Wrongful
Termination;

3.

Failure
to Provide Rest Periods;

4.
Retaliation
for Exercise of Rights to File Complaint;

5.
Fraudulent
Business Practices;

6.
Failure
to Pay Overtime;

7.
Unfair
Business Practices;

8.
Discrimination
Based on Gender;

9.
Discrimination
Based on Sexual Orientation; and

10.
Discrimination
Based on Race.

On September 29,
2021, ARMC filed an answer to
Plaintiffs' complaint.

On October 5, 2021, pursuant to Plaintiffs' request, default was entered
against Rush.

On January 20, 2022, the court granted Rush's Motion to Set Aside/Vacate
Default.

On April 8, 2022, the court denied Rush's Petition to Compel Arbitration and Stay Proceedings. On April 13, 2022, Rush filed a Notice of Appeal as to the denial of her Petition to Compel Arbitration and Stay Proceedings. On July 12, 2024, Remittitur was filed affirming the court's order denying Rush's Petition to Compel Arbitration and Stay Proceedings.

On January 9, 2025, pursuant to Plaintiffs' request, default was entered against Crush.

On June 23, 2025, the court granted Crush's Motion to Set Aside/Vacate Default.

On July 3, 2025, Crush and Rush filed an answer to Plaintiffs' complaint.

On October 7, 2025, the court denied ARMC's Motion to Strike Plaintiffs' demand for jury trial.

On March 13, 2026, ARMC filed individual Motions for Summary Judgment, or in the alternative, Summary Adjudication against each Plaintiff. On June 12, 2026, Plaintiffs filed oppositions. On June 25, 2026, Plaintiffs filed amended oppositions.[1]

On July 9, 2026, ARMC filed replies.

On August 5, 2026, the court granted in part and denied in part Moving Defendants' Motion for Summary Judgment, or in the alternative, Summary Adjudication against Marquez.

II.

MOTION FOR SUMMARY

ADJUDICATION, OR IN THE ALTERNATIVE, SUMMARY ADJUDICATION AS TO DAVIS

A.

Legal Standard

"A party may move for summary judgment in an action or proceeding if it is contended that the action has no merit or that there is no defense to the action or proceeding. The motion may be made at any time after 60 days have elapsed since the general

appearance in the action or proceeding of each party against whom the motion is directed or at any earlier time after the general appearance that the court, with or without notice and upon good cause shown, may direct." (Code Civ. Proc., § 437c, subd. (1)(a).)

"[T]he party moving for summary judgment bears the burden of persuasion that there is no triable issue of fact and that he is entitled to judgment as a matter of law. That is because of the general principle that a party who seeks a court's action in his favor bears the burden of persuasion thereon. There is a triable issue of material fact if, and only if, the evidence would allow a reasonable trier of fact to find the underlying fact in favor of the party opposing the motion in accordance with the applicable standard of proof." (Aguilar v. Atl. Richfield Co. (2001) 25 Cal.4th 826, 850 [citation omitted].)

"[T]he party moving for summary judgment bears an initial burden of production to make a prima facie showing of the reexistence of any triable issue of material fact; if he carries his burden of production, he causes a shift, and the opposing party is then subjected to a burden of production of his own to make a prima facie showing of the existence of a triable issue of material fact." (Aguilar, supra, 25 Cal.4th at 850; Smith v. Wells Fargo Bank, N.A. (2005) 135 Cal.App.4th 1463, 1474 [applying the summary judgment standards in Aguilar to motions for summary adjudication].)

"On a summary judgment motion, the court must therefore consider what inferences favoring the opposing party a factfinder could reasonably draw from the evidence. While viewing the evidence in this manner, the court must bear in mind that its primary function is to identify issues rather than to determine issues. Only when the inferences are indisputable may the court decide the issues as a matter of law. If the evidence is in conflict, the factual issues must be resolved by trial." (Binder v. Aetna Life Ins. Co. (1999) 75 Cal.App.4th 832, 839 [citation omitted].)

"The trial court may not weigh the evidence in the manner of a fact finder to determine whose version is more likely true. Nor may the trial court grant summary judgment based on the court's evaluation of credibility." (Binder, supra, 75 Cal.App.4th at 840 [citations omitted]; see also Weiss v. People ex rel.

Dep't of Transp. (2020) 9 Cal.5th 840, 864 ["Courts deciding motions for summary judgment or summary adjudication may not weigh the evidence but must instead view it in the light most favorable to the opposing party and draw all reasonable inferences in favor of that party"].)

B. Discussion

ARMC seeks summary judgment on the first through ninth causes of action alleged in the complaint[2] as to

Davis. In the alternative, ARMC moves for summary adjudication on the following issues:

[Issue

No. 1]

Davis's Eighth and Ninth Causes of

Action for Discrimination Based on Gender and Sexual Orientation against ARMC regarding her 2018 separation from ARMC are time barred;

[Issue

No. 2] Davis's Second Cause of Action for Wrongful

Termination against ARMC regarding her 2018 separation from ARMC are time barred;

[Issue

No. 3] Davis's Fourth Cause of Action for FEHA

Retaliation against ARMC and Crush Materials fails as a matter of law because she failed to exhaust administrative remedies;

[Issue

No. 4] Davis's First Cause of Action for Failure to

Pay Proper Wages, Third Cause of Action for Failure to Provide Rest Periods, Fifth Cause of Action for Fraudulent Business Practices, Sixth Cause of Action for Failure to Provide Overtime, and Seventh Cause of Action for Unfair Business Practices against ARMC regarding her 2018 separation from ARMC are barred by a prior class action settlement for ARMC;

[Issue

No. 5] Davis's First Cause of Action for Failure to

Pay Proper Wages, Third Cause of Action for Failure to Provide Rest Periods, Fifth Cause of Action for Fraudulent Business Practices, Sixth Cause of Action

for Failure to Provide Overtime, and Seventh Cause of Action for Unfair Business Practices against Crush regarding her 2018 separation from ARMC are barred by a prior class action settlement for ARMC;

[Issue

No. 6] Davis's Sixth Cause of Action for Failure to Provide Overtime against ARMC and Crush fails because Davis was exempt from Wage Order No. 1 as a ready-mix driver;

[Issue

No. 7] ARMC is not liable for Crush's alleged conduct regarding Davis's Second Cause of Action for Wrongful Termination, Fourth Cause of Action for Retaliation for Exercise of Rights to File Complaint, Eighth Cause of Action for Gender Discrimination, and Ninth Cause of Action for Sexual Orientation Discrimination because (1) ARMC Was Not Involved and (2) ARMC and Crush are not a single enterprise;

[Issue

No. 8] ARMC is not liable for Crush's alleged conduct regarding Davis's First Cause of Action for Failure to Pay Proper Wages, Third Cause of Action for Failure to Provide Rest Periods, Fifth Cause of Action for Fraudulent Business Practices, Sixth Cause of Action for Failure to Provide Overtime, and Seventh Cause of Action for Unfair Business Practices because (1) ARMC had no Involvement and (2) ARMC and Crush are not a single enterprise;

[Issue

No. 9] Davis's Fifth Cause of Action for Fraudulent Business Practices fails as a matter of law because (1) the complaint does not specify any legal basis for liability and (2) it is derivative of her unsuccessful wage and hour claims; and

[Issue

No. 10] Davis's Seventh Cause of Action for Unfair Business Practices fails as a matter of law because this is a derivative claim based on other alleged statutory violations, which all fail.

1. Evidentiary

Objections

The court declines to rule on the evidentiary objections submitted, pursuant to Code of Civil Procedure

section 437c(q) (i.e., “[i]n granting or denying a motion for summary judgment or summary adjudication, the court need rule only on those objections to evidence that it deems material to its disposition of the motion”). (Code Civ. Proc., § 437c, subd. (q).)

2. Request for Judicial Notice

ARMC’s Request for Judicial Notice is granted. Judicial notice may be taken of “[f]acts and propositions that are not reasonably subject to dispute and are capable of immediate and accurate determination by resort to sources of reasonably indisputable accuracy.” (Evid. Code, § 452, subds. (c), (h).)

3. Issue No. 1: Discrimination Based on Gender and Sexual Orientation (8th and 9th Causes of Action)

For a discrimination claim under FEHA, the plaintiff must provide evidence that (1) he was a member of a protected class, (2) he was qualified for the position he sought or was performing competently in the position he held, (3) he suffered an adverse employment action, such as termination, demotion, or denial of an available job, and (4) some other circumstance suggests discriminatory motive.” (Guz v. Bechtel Nat. Inc. (2000) 24 Cal.4th 317, 355.)

Prior to January 1, 2020, FEHA “provided that no administrative complaint alleging a violation of its provisions could be filed with the [Department of Fair Employment and Housing (“DFEH”), currently known as the Civil Rights Department (“CRD”)] after the expiration of one year from the date upon which the alleged unlawful practice or refusal to cooperate occurred.” (Pollock v. Tri-Modal Distribution Services (2021) 11 Cal.5th 918, 931.) In 2020, the Legislature amended FEHA to extend an employee’s period to file an administrative complaint from one to three years. (Gov. Code, § 12960, subd. (d); Stats. 2017, ch. 799, § 13; Gov. Code, § 12960, subd. (e); Stats. 2019, ch. 709, § 1.)

ARMC

argues that the eighth cause of action for discrimination based on gender and ninth cause of action for discrimination based on sexual orientation are time-barred as Davis filed an administrative complaint with the DFEH on January 22, 2020, more than a year after Davis's alleged termination from ARMC on August 30, 2018, which is outside the statute of limitations under Government Code section 12960. (MSJ, at pp. 16-17; Undisputed Material Fact ("UMF"), Nos. 12, 33.)

The court finds that ARMC meets its initial burden of demonstrating that Davis's FEHA discrimination claims are time-barred. The burden shift to Davis to raise a triable issue of fact.

In opposition, Davis argues that her FEHA discrimination claims are not time barred under the continuing violations doctrine. (Amended Opp., at pp. 7, 10.) Davis contends that the statute of limitations for such FEHA claims did not begin to run until her hour reduction and termination in 2019 from Crush as Davis continued performing substantial interchangeable work for ARMC and Crush as a single business enterprise. (Ibid.)

The court finds that Davis fails to raise a triable issue of fact regarding whether her FEHA discrimination causes of action are time-barred under Section 12960. Davis's continuing violations doctrine argument is premised upon ARMC and Crush's alleged operation as a single business enterprise. However, the court finds that Davis fails to provide sufficient evidence to raise a triable issue demonstrating that ARMC and Crush in fact acted as a single business enterprise to revive her untimely claims, as seen below.

Accordingly, summary adjudication is granted as to the first issue.

4. Issue No. 2: Wrongful

Termination (2nd Cause of Action)

The statute of limitations for a wrongful termination in violation of public policy is two years when the underlying public policy violation is of FEHA. (Prue v. Brady Co. (2015) 242 Cal.App.4th 1367, 1382, applying Code Civ. Proc., § 335.1.) These

claims accrue and the statute of limitations begins to run at the time of employee's dismissal. (Romano v. Rockwell Internat., Inc. (1996) 14 Cal.4th 479, 501.)

ARMC argues that the second cause of action for wrongful termination in violation of public policy is time-barred as Davis alleges she was wrongfully terminated from ARMC on August 30, 2018, but filed the instant action on March 4, 2021, past the two-year statute of limitations prescribed under Code of Civil Procedure section 335.1. (MSJ, at p. 17.)

The court finds that ARMC meets its initial burden of demonstrating that Davis's wrongful termination claim is time-barred. The burden shift to Davis to raise a triable issue of fact.

The court again finds that Davis failed to raise a triable issue of fact based on a continuing violations doctrine argument for the same reasons stated above. (Amended Opp., at pp. 18-19.)

Accordingly, summary adjudication is granted as to the second issue.

5. Issue No. 3: Retaliation (4th Cause of Action)

"Before pursuing a civil action asserting violation of the FEHA, an employee must file an administrative complaint with the" CRD, formerly the DFEH, "and obtain a right-to-sue letter from the agency." (Foroudi v. Aerospace Corporation (2020) 57 Cal.App.5th 992, 1002.) " 'Exhaustion of these procedures is mandatory; an employee may not proceed in court with a FEHA claim without first obtaining a right-to-sue letter.' " (Id., at 1002-1003.) "Claims in the employee's civil complaint that fall outside the scope of the [administrative] complaint are barred." (Id., at 1003.)

"The administrative exhaustion requirement is satisfied if FEHA claims in a judicial complaint are 'like

and reasonably related to” ’ those in the DFEH complaint [citation] or ‘likely to be uncovered in the course of a DFEH investigation.’ ” (Clark v. Superior Court, (2021) 62 Cal.App.5th 289, 301.) “ ‘The function of an administrative complaint is to provide the basis for an investigation into an employee’s claim of discrimination against an employer, and not to limit access to the courts.’ ” (Id., at 306.)

ARMC argues that the fourth cause of action for retaliation in violation of FEHA based on the filing of a wage complaint with Caltrans on October 31, 2019, fails as such claim falls outside the scope of Davis’s DFEH complaint. (MSJ, at pp. 17-19; UMF, No. 33; McAtee Decl., Exh. 25.) ARMC contends that Davis’s administrative complaint solely alleged discrimination based on gender and sexual orientation. (Ibid.) ARMC argues that Davis failed to raise any claim for retaliation to DFEH, which is not “like or reasonably related to” a discrimination charge, to exhaust her administrative remedies as to this claim. (Ibid.)

Upon review of the DFEH complaint Davis filed on January 22, 2020, the court finds that ARMC fails to carry its burden of demonstrating that Davis failed to exhaust her administrative remedies to support a claim for FEHA retaliation. The administrative complaint alleges that Davis was not paid proper wages for certain Caltrans jobs she performed in 2018. (McAtee Decl., Exh. 25.) The administrative complaint must “be construed liberally in favor of plaintiff.” (Nazir v. United Airlines, Inc. (2009) 178 Cal.App.4th 243, 268.) “When submitting the charge, claimants are not held to specify the charges with literary exactitude.” (Soldinger v. Northwest Airlines, Inc. (1996) 51 Cal.App.4th 345, 381.) The administrative “charge ‘is not intended as a limiting device.’ ” (Ibid.) Although the administrative complaint may have not explicitly alleged that Davis filed a Caltrans complaint on October 31, 2019, a triable issue of fact remains as to whether the information provided regarding the Caltrans jobs is reasonably related to her allegations regarding retaliation based on the Caltrans complaint.

Moreover, the court notes that the retaliation claim is based on FEHA and Labor Code section 1102.5. (Complaint, ¶ 57.) As such, ARMC failed to provide sufficient grounds to adjudicate the entirety of the fourth cause of action. (McCasky v. California State Automobile Assn. (2010) 189 Cal. App. 4th 947, 975 [“there can be no summary adjudication of less than an entire cause of

action.”] citing Code Civ. Proc., § 437c, subd. (f)(1) [“A motion for summary adjudication shall be granted only if it completely disposes of a cause of action, an affirmative defense, a claim for damages, or an issue of duty.”].)

Nevertheless, the court acknowledges that to state a claim for retaliation, a plaintiff must allege that engaging in a protected activity was a contributing factor to an adverse employment action under FEHA and Section 1102.5. (Yanowitz v. L'Oreal USA, Inc. (2005) 36 Cal.4th 1028, 1054; Lab. Code, § 1102.5.) Here, the complaint alleges that Davis was subjected to an adverse employment action when she was terminated from ARMC on August 30, 2018. (Complaint, ¶ 18.) Such allegations are similarly time-barred as Davis failed to file her DFEH complaint within one year from the wrongful conduct alleged. (Gov. Code, § 12960.) In fact, the Caltrans complaint appears to have been filed as a result of Davis's employment with Crush based on the information provided in the DFEH complaint. (McAtee Decl., Exh. 25.) Crush's alleged conduct cannot impose liability onto ARMC because Davis fails to carry her burden to raise a triable issue demonstrating that ARMC and Crush acted as a single business enterprise to revive her untimely claims through the continuing violations doctrine, as further explained below.

Accordingly, summary adjudication is granted as to the third issue.

6. Issue Nos. 4 and 5: Wage and Hour Claims (1st, 3rd, and 6th Causes of Action)

A court-approved settlement of a prior class action “precludes subsequent litigation on the same causes of action.” (Villacres v. ABM Industries Inc. (2010) 189 Cal.App.4th 562, 569.) In a class action settlement, “[a] clause providing for the release of claims may refer to all claims raised in the pending action, or it may refer to all claims, both potential and actual, that may have been raised in the pending action with respect to the matter in controversy.” (Villacres, *supra*, 189 Cal. App. 4th at 586 [italics in original].) A court, in approving a class action settlement, “may release not only those claims alleged in the complaint and before the court, but also claims which ‘could have been alleged by reason of or in connection with any matter or fact set forth or referred to in’ the complaint.” (Id., quoting *In re Corrugated Container*

Antitrust Litigation (5th Cir. 1981) 643 F.2d 195, 221.) A class action "settlement agreement may preclude a party from bringing a related claim in the future . . . only where the released claim is 'based on the identical factual predicate as that underlying the claims in the settled class action.'" (Amaro v. Anaheim Arena Management, LLC (2021) 69 Cal. App. 5th 521, 537 [italics in original], quoting Hesse v. Sprint Corp. (9th Cir. 2010) 598 F.3d 581, 590.)

The doctrine that precludes subsequent litigation of claims is the doctrine of res judicata, or claim preclusion, which precludes "relitigation of the same cause of action in a second suit between the parties or parties in privity with them." (DKN Holdings LLC v. Faerber (2015) 61 Cal.4th 813, 824.)

ARMC argues that the first cause of action for failure to pay proper wages, third cause of action for failure to provide rest periods, fifth cause of action for fraudulent business practices, sixth cause of action for failure to provide overtime, and seventh cause of action for unfair business practices are precluded as Davis settled her individual claims as part of a class settlement in Glynn Van Norton v. Associated Ready Mixed Concrete Inc., Case No. BC648499 ("Class Action"). (MSJ, at pp. 19-21.)

In support, ARMC provides that, on January 30, 2017, the class action was filed against ARMC on behalf of a class defined as "all nonexempt positions of Mixer Driver or Driver at Associated in the State of California" who worked from January 30, 2013, through judgment on March 19, 2019. (UMF, No. 25.) The Class Action settlement released claims for failure to pay proper wages (Labor Code sections 201, 202, 203, 204, and 1194), failure to provide meal and rest periods (Labor Code section 226.7), failure to pay overtime (Labor Code section 510), and fraudulent business practices and unfair business practices (Bus. & Prof Code section 17200, et seq.) for work performed during the class period of January 30, 2013, through May 19, 2019. (Id., No. 26.) The Release of Claims in the Class Action provides that class members released ARMC and "all of its former and present parents, subsidiaries, and affiliates, and its current and former officers, directors, employees, partners, shareholders and agents, and the predecessors and successors, assigns, and legal representatives

of all such entities and individuals" from all released claims arising during the class period. (Id., No. 34.) Davis was identified as a class member in the Class Action and received a settlement payment. (Id., No. 27.)

The court finds that ARMC carries its initial burden of demonstrating that Davis's wage and hour claims and derivative causes of action for fraudulent and unfair business practices are precluded due to the Class Action settlement. The court also agrees that, to the extent Davis asserts that Crush is a related entity of ARMC, any covered claim against Crush would also be encompassed by the release. (MSJ, at p. 21, fn. 5.) The burden shifts to Davis to raise a triable issue of fact.

In opposition, Davis argues that the class settlement only released wage claims against ARMC for the defined period which does not bar Davis's individualized claims against Defendants involving post-settlement retaliation, discrimination, constructive termination from Crush in 2019, or Crush-specific conduct based on ARMC and Crush's alleged operations as a single business enterprise. (Opp., at pp. 29-30.)

The court finds that Crush's alleged conduct cannot impose liability onto ARMC because Davis fails to carry her burden to raise a triable issue demonstrating that ARMC and Crush acted as a single business enterprise, as further explained below.

Accordingly, summary adjudication is granted as to the fourth and fifth issues.

7. Issue No. 6: Failure to Pay Overtime (6th Cause of Action)

ARMC argues that the sixth cause of action for failure to pay overtime fails because Davis's position as a ready-mix driver is exempt from overtime laws. (MSJ, at pp. 21-23.) In support, ARMC provides that California Industrial Welfare Commission Wage Order No. 1-2001, applicable to ARMC as part of the manufacturing industry, exempts commercial drivers like Davis from overtime requirements because their hours are regulated by Title 13 of the California Code of Regulations. (Ibid.)

Wage Order

No. 1-2001, Section 3(A)(2) provides that “[t]he provisions of this section are not applicable to employees whose hours of service are regulated by:

(a) The United

States Department of Transportation Code of Federal Regulations, Title 49, Sections 395.1 to 395.13, Hours of Service of Drivers; or

(b) Title 13 of the

California Code of Regulations, subchapter 6.5, Section 1200 and the following sections, regulating hours of drivers.”

(Wage

Order No. 1-2001, § 3, subd. (A)(2).)

Title 13, Section

1200 provides that “the provisions of this chapter shall apply to vehicles listed in Vehicle Code Sections 545(a)(11), 34500 and 34500.1 and their operation.” (Cal. Code Regs., Tit. 13, § 1200, subd. (a).) Vehicle Code Section 34500 includes “[a] vehicle, or a combination of vehicles, transporting hazardous materials” and “[a] commercial motor vehicle with a gross vehicle weight rating of 26,001 or more pounds”. (Veh. Code, § 34500, subd. (g), (k).)

It is undisputed that

throughout her employment with ARMC, Davis operated a truck exceeding 26,001 lbs. throughout her employment. (UMF, Nos. 2, 8.) Thus, the overtime rules of Labor Code section 510 do not apply to Davis. (Collins v. Overnite Transportation Co., (2003) 105 Cal.App.4th 171, 174-181.)

Accordingly, summary adjudication is granted as to the sixth issue.

8. Issue Nos. 7 and 8:

Single Business Enterprise

“The

‘single-business-enterprise’ theory is an equitable doctrine applied to reflect partnership-type liability principles when corporations integrate their resources and operations to achieve a common business purpose.” (Toho-Towa

Co., Ltd. v. Morgan Creek Productions, Inc. (2013) 217 Cal.App.4th 1096, 1108.) “[U]nder the single-enterprise rule, liability can be found between sister companies. The theory has been described as follows: In effect what happens is that the court, for sufficient reason, has determined that though there are two or more personalities, there is but one enterprise; and that this enterprise has been so handled that it should respond, as a whole, for the debts of certain component elements of it.”²(Las Palmas Associates v. Las Palmas Center Associates (1991) 235 Cal.App.3d 1220, 1249-1250.)

A plaintiff must show that (1) a unity of interest and ownership between the separate entities such that the separate corporate personalities are merged and (2) an inequitable result if the acts in question are treated as those of one corporation alone. (Tran v. Farmers Group, Inc. (2002) 104 Cal.App.4th 1202, 1219.)³“Factors for the trial court to consider include the commingling of funds and assets of the two entities, identical equitable ownership in the two entities, use of the same offices and employees, disregard of corporate formalities, identical directors and officers, and use of one as a mere shell or conduit for the affairs of the other.”⁴ No one characteristic governs, but the courts must look at all the circumstances to determine whether the doctrine should be applied.”⁵(Troyk v. Farmers Group, Inc. (2009) 171 Cal.App.4th 1305, 1341-1342.)

ARMC argues that

Davis cannot demonstrate that ARMC and Crush operate as a single business enterprise to impose liability onto ARMC for Crush's alleged conduct. (MSJ, at pp. 23-26.) First, ARMC contends that Davis cannot establish a unity of interest and ownership between the two entities. (Id., at pp. 24-26.) In support, ARMC provides that Davis performed work for both entities simultaneously and continued to work for Crush after Davis's termination from ARMC in 2018. (UMF, Nos. 7, 11-13.) ARMC had no involvement in timekeeping or payroll as to Davis's employment at Crush; Davis was independently supervised by Rush and Marquez during her employment with Crush; Davis submitted different time records for each entity using a separate timekeeping system; and Davis received separate paychecks from each entity. (Id., Nos. 4-6, 9-10.) ARMC further provides that, from 2017 through 2021, Rush was the sole owner, director, and officer of Crush, whereas during such time period Kurt and Randy Caillier (“Cailliers”) were the president and vice-president of ARMC and did not own Crush, in whole or in part. (Id., Nos. 16-19.) ARMC contends

that Crush was a vendor of ARMC for the use of material and equipment. (MSJ, at p. 25.)

Second, ARMC

contends that there is no inequitable result from treating the entities as separate because the alleged wrongful conduct was solely carried out by Crush, and ARMC has not involvement in the events giving rise to Davis's claims after her separation from ARMC in 2018. (Id., at pp. 25-26.)

The court finds that

ARMC carried its burden of showing that the single enterprise doctrine is inapplicable as there is no unity of interest or ownership between the entities and no inequities would result. The burden shifts to Davis to produce evidence that there are triable issues.

In opposition, Davis

argues that the entities operated as a single enterprise based on Davis performing interchangeable mixer/volumetric driver work for ARMC and Crush at shared jobsites using shared trucks, equipment, and facilities. (Opp., at p. 10.)

The court does not find

that Davis raised a triable issue of fact as to whether the entities operated as a single enterprise. The evidence demonstrates that Davis performed work for both entities merely because Davis was employed as a driver for ARMC and Crush during an overlapping period of time. Moreover, the sharing of equipment and facilities is insufficient to demonstrate a unity of interest or ownership between the entities alone. Davis also fails to demonstrate that there would be an inequitable result if the acts in question are treated as those of one corporation alone.

Accordingly, summary adjudication is granted as to the seventh and eighth issue.

9. Issues Nos. 9 and

10: Fraudulent Business Practices and Unfair Business Practices (5th and 7th Cause of Action)

ARMC argues that

Davis's derivative claims for fraudulent business practices and unfair business practices fails as the underlying causes of action fail for the reasons

mentioned above. (MSJ, at pp. 26-28.)

The court notes that summary adjudication was granted as to all the underlying causes of action. As such, Davis's fraudulent and unfair business practices claims also fail.

Accordingly, summary adjudication is granted as to the ninth and tenth issues.

III.

MOTION FOR SUMMARY

ADJUDICATION, OR IN THE ALTERNATIVE, SUMMARY ADJUDICATION AS TO MARQUEZ

A.

Legal Standard

See Section II(A) above.

B. Discussion

ARMC seeks summary judgment on the first through seventh and tenth causes of action, in addition to the claim for punitive damages, alleged in the complaint as to Marquez. In the alternative, ARMC moves for summary adjudication on the following issues:

[Issue

No. 1] Marquez's First Cause of Action for Failure to Pay fails as a matter of law because the Labor Code violations alleged in the complaint are inapplicable and Marquez was not eligible for overtime as an exempt employee;

[Issue

No. 2] Marquez's Third Cause of Action for Failure to Provide Rest Periods and Sixth Cause for Failure to Pay Overtime fails as a matter of law because Marquez was an exempt employee under executive exemption and therefore not entitled to rest periods or overtime;

[Issue

No. 3]

Marquez's Fourth Cause of Action for Retaliation fails because (1) he did not engage in any protected activity, (2) ARMC had no knowledge of the Caltrans complaint; and (3) Marquez failed to exhaust administrative remedies;

[Issue

No. 4]

Marquez's Fifth Cause of Action for Fraudulent Business Practices fails because (1) the complaint does not specify any legal basis for liability and (2) it is derivative of his unsuccessful wage and hour claims;

[Issue

No. 5]

Marquez's Seventh Cause of Action for Unfair Business Practices fails as a matter of law because it is derivative of his failed underlying claims;

[Issue

No. 6]

ARMC and Crush are not a single enterprise and ARMC had no involvement in any of Marquez's allegations against Crush;

[Issue

No. 7]

Marquez's Second Cause of Action for Wrongful Termination, Fourth Cause of Action for Retaliation, and Tenth Cause of Action for Discrimination Based on Race fail because plaintiff's claims rest on speculation; and

[Issue

No. 8]

Marquez's Request for Punitive Damages fails as a matter of law because there is no evidence of malice, oppression or fraud by ARMC.

1. Evidentiary

Objections

The court declines to rule on the evidentiary objections submitted, pursuant to Code of Civil Procedure section 437c(q) (i.e., "[i]n granting or denying a motion for summary judgment or summary adjudication, the court need rule only on those objections to evidence that it deems material to its disposition of the motion"). (Code Civ. Proc., § 437c, subd. (q).)

2. Request for Judicial

Notice

ARMC's Request for Judicial Notice is granted. Judicial notice may be taken of "[f]acts and propositions that are not reasonably subject to dispute and are capable of immediate and accurate determination by resort to sources of reasonably indisputable accuracy." (Evid. Code, § 452, subds. (c), (h).)

3. Single Business

Enterprise

As an initial matter, the court notes that Marquez's allegations in support of all his causes of action arise from Crush's alleged wrongful conduct during his role as Vice President of Operations at Crush. (Complaint, at pp. 4-6.) For Marquez to impose liability onto ARMC for Crush's alleged conduct, Marquez must demonstrate his single enterprise theory of liability.

ARMC argues that

Marquez cannot demonstrate that ARMC and Crush operate as a single business enterprise to impose liability onto ARMC for Crush's alleged conduct. (MSJ, at pp. 22-24.) In support, ARMC provides that, from 2017 to 2019, Marquez was exclusively employed with Crush. (UMF, Nos. 10-15, 20.) ARMC also provides evidence that Marquez was instructed to treat the entities as separate in various occasions during his employment with Crush. (Id., No. 32.) ARMC also argues that there is no inequitable result from treating the entities as separate because the alleged wrongful conduct was solely carried out by Crush, and ARMC has not involvement in the events giving rise to Marquez's claims. (MSJ, at pp. 23-24.)

The court finds that

AMRC met its initial burden of demonstrating the single enterprise doctrine is inapplicable as there is no unity of interest or ownership between the ARMC and Crush and no inequities would result.

In opposition, Marquez fails to raise

a triable issue of fact as

to whether the entities operated as a single enterprise. Marquez contends that

evidence of investments in Crush by the Cailliers, Rush's romantic relationship with Kurt Caillier from 1999 to 2008, and the presentation of a Recognition Award for 20 years of service at ARMC to Marquez while Marquez was allegedly working only for Crush demonstrate a unity of interest or ownership between the entities. (Opp., at p. 2.)

The court does not find that Marquez raised a triable issue of fact as to whether the entities operated as a single enterprise. The evidence presented in opposition fails to demonstrate the commingling of funds and assets of the two entities, identical equitable ownership in the two entities, use of the same offices and employees, disregard of corporate formalities, identical directors and officers, or use of one as a mere shell or conduit for the affairs of the other. (Troyk, supra, 171 Cal.App.4th at 1341-1342.) Marquez needs to demonstrate more than a mere overlap in business and personal relationship between the directors of the entities to support a single enterprise theory of liability. Marquez also fails to demonstrate that there would be an inequitable result if the alleged acts of Crush are treated as those of Crush alone.

Accordingly, summary judgment is granted as to the first through seventh and tenth causes of action, in addition to the claim for punitive damages, alleged in the complaint by Marquez against ARMC.

IV.

CONCLUSION

1.

Defendant Associated

Ready Mixed Concrete, Inc.'s Motion for Summary Judgment, or in the alternative, Summary Adjudication as to Plaintiff Melissa Davis is GRANTED.

2.

Defendant Associated

Ready Mixed Concrete, Inc.'s Motion for Summary Judgment, or in the alternative, Summary Adjudication as to Plaintiff Eric Marquez is GRANTED.

[1]

The court exercises its

discretion to consider the amended opposition and supporting documents. However, the court will not consider any argument or supporting document presented in conjunction with the first opposition in its analysis.

[2] The

court notes that the tenth cause of action for discrimination based on race is solely asserted by Marquez against Defendants, thus not subject to this motion pertaining Davis. (Complaint, ¶¶ 88-92.)